

REPUBLIC OF BULGARIA
NATIONAL ASSEMBLY

ACADEMIC AUTONOMY FOR HIGHER EDUCATIONAL ESTABLISHMENTS
ACT

Promulgated State Gazette No. 10/02.02.1990

Amended SG No.90/1993

Section I

GENERAL

Article 1

(1) The State shall grant autonomy to the higher educational establishments in the educational process and scientific research, as well as in other related activities taking place at the higher educational establishments.

(2) This Act shall regulate the relations between the higher educational establishments and the State, state bodies and other social communities and structures on the basis of academic autonomy of the higher educational establishments.

Article 2

(1) The higher educational establishments shall carry on their activities by combining academic autonomy with their responsibility to society and the State, which pursues a unified policy in the sphere of higher education.

(2) The rights of the higher educational establishments under this Act and the Higher Education Act may not be amended or restricted by the state bodies or other organizations, except in cases provided for in the Constitution.

Section II

AUTONOMY OF HIGHER EDUCATIONAL ESTABLISHMENTS
AND POWERS OF THE STATE

Article 3

The higher educational establishments shall independently:

1. define their organizational structure and adopt rules for the arrangement and activities of the higher educational establishment;
2. adopt general guide-lines and plans for training and improvement of qualification of the specialists with higher education and for scientific

research, as well as a plan for improving the qualification of the scientific and teaching staff;

3. organize and conduct the entrance examinations for the enrollment of students on the basis of unified public criteria;

4. develop and approve in dialogue with the users of specialists the subjects and qualification characteristics, the educational plans and programmes for training and qualification improvement of specialists with higher education, based on the established obligatory public requirements and criteria for recognition of higher educational degree and qualification, and determine the forms of student training;

5. organize and carry out in dialogue with the users the qualification improvement and retraining of specialists with higher education and authorize the educational contents of training;

6. conclude with the State, the economic and other organizations, contracts on training and qualification improvement of specialists with higher education and on scientific research;

7. organize contests and appoint members of the scientific and training staff under the terms and procedures set forth in the Scientific Degrees and Academic Ranks Act;

8. approve the educational plans and programmes of the semihigher institutes affiliated with them and appoint their scientific and training staff;

9. determine the ways and criteria of selection and organize and carry out the contests for graduate and postgraduate students;

10. create their own funds, including in convertible currency, from the money received from the State, from their own research and training activities, from donations of Bulgarian and foreign organizations, endowments and individuals, and set out the provisions and procedures for their utilization;

11. determine the numbers of their staff and adopt rules for organization of their salaries, for determining the individual work-load in training hours and scientific research of the scientific workers and training staff, as well as rules for the appraisal of work at the higher educational establishments;

12. organize the setting up of a material and technological base for the educational, research and publishing activities, including for publication of manuals and other scientific literature;

13. create and develop their own centres for social and communal services of students and training staff;

14. associate with Bulgarian and foreign higher educational establishments, research and other organizations for the improvement of training and qualification of specialists with higher education and for conducting scientific research;

15. organize international cooperation and hold membership in international organizations;

16. send under the established procedures their undergraduate, graduate and post-graduate students and research workers abroad;

17. set up firms and participate in Bulgarian and foreign companies under the terms and procedures set forth in an act or decree.

Article 4

(1) The higher educational establishments and their constituent organizations holding the status of legal persons may set up departments, laboratories, sectors, sections, libraries, printing centres, graduate educational schools, experimental, production and other units.

(2) The units under the above paragraph shall not have legal personality.

Article 5

The property of the higher educational establishments and their constituent organizations possessing legal personality shall consist of the right of ownership or, respectively, the right of management, the right of use and other real rights, intellectual property rights and other rights and obligations.

Article 6

(1) The General Assembly, Academic Council and Rector shall be the self-government bodies of the higher educational establishments.

(2) The General Assembly shall comprise all research workers with academic rank employed under an employment contract, research workers and employees without academic rank appointed by the respective units, representatives elected by the undergraduate and graduate students, as well as representatives of external organizations and prominent specialists in practice appointed by the Academic Council. The structure of the General Assembly shall be determined by the existing Academic Council.

(3) The General Assembly shall be convened by the Rector or on written request submitted by at least one-quarter of its members. The assembly session shall be deemed legal when at least two thirds of its members are present and its decisions shall be taken with a simple majority of the attending members.

Article 7

The General Assembly shall:

1. adopt rules on the structure and activities of the higher educational establishment;
2. determine the numbers of the Academic Council for a respective mandate and elect by secret ballot its members and the Rector.

Article 8

- (1) The General Assembly, Faculty Council and Dean or, respectively, Head shall be the self-government bodies of the faculties and the organizations conferred equivalent status and possessing legal personality.
- (2) The structural composition of the General Assembly under the above paragraph shall be determined by the Faculty Council with due regard being given to the provisions of Article 6, paragraph 2.

Article 9

- (1) The Rector, Dean and other heads of constituent organizations and units of the higher educational establishment, their deputies and members of the Academic and Faculty Councils shall be elected for a term of 4 years. No person may hold more than two terms in succession.
- (2) The posts of Rector, Dean or Head of constituent organizations or units in a higher educational establishment, or of their deputies, may not be occupied by persons at retirement age as stipulated by the Higher Education Act.

Article 10

The Rector, Dean and heads of constituent organizations or units, as well as the members of the Academic or Faculty Councils in a higher educational establishment, may be discharged on their own request or dismissed before the expiry of their term on a decision of the body which has elected them with a simple majority of its registered members. The members on sick leave or working abroad shall not be considered in composing this body.

Article 11

- (1) The higher educational establishments may appoint on contract for a fixed term as visiting professors, dozenten or senior research associates Bulgarian or foreign scientists or specialists after their passing a contest and being appointed by the Faculty or Academic Council.
- (2) The persons appointed under the above paragraph shall not be eligible for academic rank as defined in the Scientific Degrees and Academic Ranks Act.

Article 12

The educational process in the higher educational establishments may be organized on different qualification levels based on qualification characteristics, educational plans and programmes and through obligatory, free-choice and optional disciplines.

Article 13

(1) The State shall organize, encourage and help the higher education by:

1. carrying out with the help of the higher educational establishments a national policy for advancement of higher education;
2. setting up state-financed higher educational establishments and their constituent organizations possessing legal personality;
3. establishing obligatory public criteria and requirements for obtaining a diploma for higher education and qualification;
4. providing on contract based on differentiated State Budget norms money for financing the training and qualification improvement of specialists with higher education as commissioned by the state;
5. providing on contract money for support of higher educational establishments and aiding them in their activities, as well as for scientific research based on competition;
6. exercising supervision over the quality of training of specialists and of the expended funds.

(2) In adopting the State Budget, the National Assembly shall also adopt the budget of the higher educational establishments.

Article 14

(1) The state guidance of higher education shall be carried out by the National Assembly and the Council of Ministers.

(2) The Committee for Science and Higher Education shall coordinate the relations between the autonomous higher educational establishments and the State. Other ministries and departments incorporating higher educational establishments within their systems may also exercise coordinating functions.

Article 15

Repealed, State Gazette No. 90/22.10.1993

ADDITIONAL PROVISION

§ 1. The higher educational establishments of the Armed Forces and Ministry of Interior systems shall apply this Act in accordance with the acts regulating

their establishment and the provisions of special laws concerning their structure and activities.

CONCLUDING PROVISIONS

§ 2. The following amendments shall be made to the Higher Education Act (published Izvestia, No 12 of 1958; amended, SG, No 99 of 1963; No 65 of 1972; rectification No 81 of 1972; amended No 58 of 1978; No 68 of 1988 and No 82 of 1989):

1. In Article 1:

a. In paragraph 1 the expressions "of a new type" and "brought up in a Communist spirit, loyalty to the Party, actively contributing to carrying the Party policy out in life" shall be deleted.

b. In paragraph 2 the expression "unified centres for science and training of specialists" shall be deleted.

2. In Article 2:

a. The words "State Council" shall be replaced with "National Assembly".

b. Paragraph 4 shall read as follows:

"(4) Faculties, research and educational centres, scientific and other organizations possessing legal personality, which shall be incorporated into a higher educational establishments, shall be created by the Council of Ministers on a recommendation of or in consultation with the higher educational establishment".

c. In paragraph 4 "Committee for Science and Higher Education" shall be replaced with "Academic Council of the higher educational establishment".

d. Paragraphs 1 and 2 shall be deleted. Paragraphs 3, 4, 5 and 6 shall become 1, 2, 3 and 4 respectively.

3. Article 3 shall be repealed.

4. Section II "Structure and Management of the Higher Educational Establishments" and articles 5 through 10 shall be repealed.

5. In Article 12:

a. "Under the terms and procedures of the Scientific Degrees and Academic Ranks Act" shall be added to the first sentence of paragraph 1; the second and third sentences shall be deleted.

b. Paragraphs 2, 3 and 4 shall be deleted.

6. In Article 15:

a. "Under the terms and procedures of the Scientific Degrees and Academic Ranks Act" shall be added to the first sentence of paragraph 1. The second sentence shall be deleted.

b. Paragraphs 2 and 3 shall be deleted.

7. Subparagraph "a" of Article 19 shall be deleted. Subparagraphs "b", "c" and "d" shall become "a", "b" and "c" respectively.

8. Article 20, paragraph 2 shall be amended as follows:

"(2) Dismissal under Article 19 shall be carried out under the same procedure as the selection and appointment."

9. In Article 21:

a. "Under subparagraphs (a) and (b)" shall be deleted in the first sentence of paragraph 2; the second sentence shall be deleted.

b. Paragraph 3 shall be amended as follows:

"(3) On recommendation from the Faculty Councils the Academic Council may extend a permission to members of the training and research staff who are over 60 years of age, and over 65 years for Professors and Senior Research Associates First Grade, to continue work. The decision shall be subject to secret ballot and fixed-term annual contracts shall be signed with the said persons".

10. In Article 24 "age of 40" shall be replaced with "no age limits".

11. In Article 26 "Committee for Science and Higher Education" shall be replaced with "Academic Council of the higher educational establishment".

12. A new Article 28bis shall be created:

"Article 28bis

(1) The fundamental rights of the students shall be:

1. to choose the subjects in their free-choice and optional training, as well as the professors in parallel training courses;

2. to take a direct part in the educational process and research work;

3. to receive qualified help and instruction for their scientific, professional, creative and cultural advancement by having access to leading Bulgarian and foreign scientists and schools, laboratories and equipment;
4. to use and take part in the management of the training, social, communal and cultural base of the higher educational establishment and of the key economic and other organizations;
5. to participate in the self-government of the higher educational establishment and its constituent organizations by taking part in the election or by being elected on the self-government bodies in the cases provided for in this Act;
6. to take part in the appraisals of the teaching staff;
7. to appeal the decisions pertaining to their status as students before the respective bodies;
8. to associate into student communities to protect their rights and interests;
9. to receive credits, loans or scholarships for their support.

(2) In accordance with the provisions of the rules for the structure and activities of the higher educational establishment the students may complete their education in reduced terms, may be simultaneously trained in two specialities, or according to individual educational plans, and may continue their education on a higher qualification level."

13. A new Article 28ter shall be created:

"Article 28ter

The students' obligations shall be governed by the rules for structure and activities of the higher educational establishment."

14. A new Article 28quater shall be created:

"Article 28quater

(1) Transfer of students from one to another higher educational establishment, faculty or speciality, as well as from regular to distance learning or evening courses and vice versa, shall be permitted after the end of the preceding but prior to the start of the current academic year under the terms and procedures established by the rules for the structure and activities of the higher educational establishment.

(2) Transfer of students from one to another speciality within the same faculty shall be decided by the Dean. Transfer from one faculty to another, as well as

from regular to distance learning or evening course and vice versa within the framework of the same higher educational establishment shall be decided by the Rector, and from one to another higher educational establishment - by both Rectors."

15. Article 33 shall be repealed.

§ 3. The Scientific Degrees and Academic Ranks Act (published. SG, No 36 of 1972; amended No 43 of 1975, No 12 of 1977, No 61 of 1981 and No 94 of 1986) shall be amended as follows:

1. A new Paragraph 2 shall be added to Article 18:

"(2) When the nominees for academic rank under the above paragraph possess the respective scientific degree, the academic ranks Senior Research Associate Second Grade, Dozent, Senior Research Associate First Grade and Professor shall be conferred by the scientific council of the research organizations, with at least 19 persons with academic rank or Doctors of Science on their staff. At least half plus one of the council's members shall hold academic rank or be Doctors of Science in the respective scientific branch or scientific speciality for which the competition is held."

2. Article 20, paragraph 2 shall be repealed.

3. "And of the scientific council under Article 18, paragraph 2" shall be added after the words "scientific commission" in Article 27, paragraphs 1, 2 and 3; the word "weeks" shall be replaced with "months" in paragraph 2 of the same article.

4. "Who engage in antinational activities" shall be deleted in Article 30, paragraph 1.

5. Throughout the text "Committee for Science with the Council of Ministers, the State Committee for Research and Technologies and the Ministry of Public Education" shall be replaced with "Committee for Science and Higher Education", and "Council for Spiritual Advancement" shall be deleted.

TRANSITIONAL PROVISION

§ 4. Procedures for conferring of academic ranks recommended by the respective scientific councils to the scientific commissions with the Higher Attestation Committee shall continue as formerly.

§ 5. The implementation of this Act is assigned to the Chairman of the Committee for Science and Higher Education.

This Act was adopted by the Ninth National Assembly at its Fourteenth Session, second sitting, held on 25 January 1990 and the State Seal was affixed to it.

Chairman of the National Assembly of the People's Republic of Bulgaria: Stanko
Todorov